

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MAC INDUSTRIES INC. DBA MAC CONTAINER LINE,
Complainant

v.

COSCO SHIPPING LINES CO., LTD., COSCO SHIPPING LINES
(NORTH AMERICA) INC., AND COSCO SHIPPING LINES
(INDIA) PRIVATE, *Respondents*.

DOCKET NO. 25-29

Served: September 03, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING COSCO INDIA’S MOTION TO DISMISS COMPLAINT

On August 13, 2026, Respondent COSCO Shipping Lines (India) Private Ltd., (“COSCO India” or “CIN”), through a special appearance by counsel, submitted a motion to dismiss the complaint of MAC Industries Inc. (“MAC” or “Complainant”) against COSCO India based on the insufficiency of the service of process (“Motion”). CIN asserts that the service of process was insufficient, the terms of the Hague Convention on Service are mandatory and have not been followed, and therefore that the complaint should be dismissed with respect to CIN. Motion at 3-6.

On August 28, 2026, Complainant MAC Industries Inc. dba MAC Container Line (“MAC”) filed a response to the motion (“Response”). MAC asserts that CIN improperly cited Commission precedent; federal district court case law is inapposite; and dismissal is premature where additional time would allow MAC to complete service under the Hague Convention. Response at 1-3.

On September 2, 2026, CIN filed a reply (“Reply”), stating in relevant part that: “CIN does not object to the Presiding Officer providing MAC with a reasonable time period in which to properly serve CIN with the Amended Complaint in accordance with the Hague Convention.” Reply at 1.

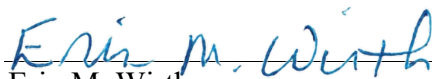
The parties do not dispute that the complaint was not served on CIN using the Hague Convention procedures. The dispute focusses on the remedy, whether the case should be dismissed or whether additional time should be provided to effectuate service.

Initially, it is noted that CIN incorrectly represented the findings in the July 10, 2025, order issued in *Samsung Electronics America, Inc. v. OOCL*, Docket 24-17. Motion at 5. The request to dismiss the complaint at issue in that case was denied, and the party was provided additional time to commence service procedures under the Hague Convention. *Samsung Electronics America, Inc. v.*

OOCL, Docket 24-17, Order Granting OOCL's Motion for Reconsideration, and Denying SEC's Motion to Dismiss Third Party Complaint, OOCL's Motion for Alternative Service, OOCL's Motion for Enlargement, and SEC's Motion for an Order Preserving Defense at 4-7.

"In many instances where a foreign corporation has not been served in compliance with the Hague Convention, the favored remedy is to allow the plaintiff the appropriate time to properly serve the defendant." (*Castillo v. Hongjin Crown Corp.*, 2008 WL 11334092, at *2 (W.D. Tx. Oct. 27, 2008)) (internal citations omitted); *see also Capturion Network, LLC v. Liantronics, LLC*, 2021 WL 1083180 (S.D. Miss. March 18, 2021) (noting several instances of the time to affect service being extended); *Brown v. Allen*, 2010 WL 11507324, at *1-2 (M.D. Fla. Aug. 17, 2010)). Therefore, dismissal for failure to serve CIN is premature at this time. Instead, under 46 C.F.R. § 502.113(c), MAC may have a reasonable time to serve the complaint on CIN pursuant the Hague Convention procedures.

For the reasons discussed above, it is **HEREBY ORDERED** that CIN's Motion to Dismiss be **DENIED**. MAC shall file a status report by October 16, 2026, indicating the status of its attempt to serve CIN utilizing the Hague procedures. If CIN is served, the parties should file a joint status report with revised proposed schedule, if necessary, within 10 days CIN's Answer.



Erin M. Wirth

Chief Administrative Law Judge